25-3142-cr

IN THE UNITED STATES COURT OF APPEALS
FOR THE SECOND CIRCUIT

UNITED STATES OF AMERICA,
Appellee,

-v-

JONATHAN JOSHUA MUNAFO,
Defendant-Appellant.

On Appeal from the United States District Court for the Northern District of New York

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BRIEF FOR DEFENDANT-APPELLANT JONATHAN MUNAFO

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JURISDICTIONAL STATEMENT

This appeal is taken from a judgment on revocation entered against the Defendant-Appellant Jonathan Munafo in the United States District Court for the Northern District of New York, by the Honorable Anne M. Nardacci, United States District Judge, on December 1, 2025. A 86.[1] The district court had subject matter jurisdiction, pursuant to 18 U.S.C. § 3231, because this was a criminal case alleging violations of federal supervised release. A 50. Jurisdiction is invoked in this Court pursuant to 28 U.S.C. § 1291 and 18 U.S.C. § 3742. A notice of appeal was timely filed on December 12, 2025. A 91.

STATEMENT OF THE ISSUES PRESENTED

1. Whether the district court, after revoking Munafo's term of supervised release, abused its discretion by basing the imposition of a 7-month term of imprisonment and 24-month term of supervised release on the perceived need for retribution.

2. Whether the case should be remanded because the thirteen standard conditions of supervised release included in the written judgment were not previously disclosed by the district court or orally pronounced at sentencing.

STATEMENT OF THE CASE

Jonathan Munafo appeals from a judgment of the Northern District of New York entered on December 1, 2025, revoking his supervised release and sentencing

[1] Citations to the Appendix are to the page numbers inserted therein.

him to 7 months' imprisonment with 24 months' supervised release to follow. A 86-88. A notice of appeal was timely filed on December 12, 2025. A 91. The Office of the Federal Public Defender was continued by this Court as counsel to Munafo on this appeal, pursuant to the Criminal Justice Act.

On October 26, 2022, Munafo was sentenced in the Western District of Michigan to 24 months' imprisonment and 3 years' supervised release following a conviction for interstate threatening communications, in violation of 18 U.S.C. § 875(c). A 14-16. His prison sentence was reduced to 21 months on August 5, 2024, pursuant to Amendment 821 of the Sentencing Guidelines, which had the effect of reducing his original Criminal History Category II to Category I. A 29-31.

He began his initial term of supervised release on January 20, 2025.[2] A 50. On April 11, 2025, jurisdiction was transferred to the Northern District of New York. A 56.

Munafo's compliance with the conditions of supervision has been inconsistent. As noted by the Probation Office, "Munafo has an extensive history of mental health and substance abuse issues." A 56. He was prescribed Prozac and Abilify while incarcerated to manage his bipolar disorder and ADHD. A 56. Unfortunately, he was not provided medication upon his initial release from

[2] Munafo received a pardon on January 20, 2025, for separate offenses relating to his conduct at the United States Capital in Washington, D.C. on January 6, 2021.

custody. He was able to obtain Prozac shortly after his release, but nothing in the record indicates he was ever able to obtain Abilify while on supervision.

After testing positive for cocaine on March 18, 2025, Munafo was ordered to complete 25 hours of community service and several special conditions were added to his supervision, including conditions relating to property searches, financial disclosures, mental health and substance abuse treatment, and alcohol prohibition. A 56.

The district court held a revocation hearing on November 21, 2025. In accordance with the parties' agreement, Munafo admitted to Violations 1 and 2. A 70-72. The parties repeated their request for a prison sentence of time served with no additional term of supervision. A 72-74. The Probation Officer recommended an additional term of supervised release "given his mental health concerns [and] his brief period on supervision which resulted in substance use." A 74.

After hearing from the parties, the court imposed a sentence of 7 months' imprisonment to be followed by 24 months' supervision based on the following reasons:

> The Court chose a sentence within the applicable guideline range to reflect your breach of the trust of this Court, and after the Court has considered the relevant factors as outlined in 18 United States Code, Section 3583(e). Specifically, the Court notes the defendant's significant history of substance use and his admission to illicit drug use while on supervised release.

> The Court is also concerned about the defendant's admission to traveling out of the jurisdiction without prior approval from the probation office, and it should be noted that the Court is also concerned about the defendant's lack of willingness to comply with inpatient treatment, which lasted approximately 24 hours.
>
> Court believes that the sentence adequately reflects the seriousness of the violation conduct and provides just punishment for that conduct.
>
> A 77.

The district court stated that while serving his 24-month term of supervised release, Munafo will be required to "comply with the standard conditions that have been adopted by this Court." A 77-78. Munafo will also have to adhere to six special conditions, which, unlike the standard conditions, were disclosed prior to sentencing and explained by the district court. A 78-82, 90.

Defense counsel objected to the Court's consideration of the conduct underlying Violation 3. A 83. The district court responded that it referenced the "violation conduct that was alleged for Violation Number 3, but [did] not rely on that in determining Mr. Munafo's sentence." A 84.

SUMMARY OF THE ARGUMENT

The district court abused its discretion by considering the perceived need for retribution when revoking Munafo's supervised release and imposing an additional 7-month term of imprisonment and 24-month term of supervision. Although Munafo did not object below, the Supreme Court, abrogating this Court's prior decision to the contrary, has recently made clear that retribution is not a proper

consideration when revoking a defendant's supervised release and imposing a sentence. Because the district court was primarily concerned with punishing Munafo's prior misconduct, this Court should remand for plenary resentencing. Even if this Court affirms Munafo's 7-month term of imprisonment and 24-month term of supervised release, this Court should still remand the case because the thirteen standard conditions of supervision included within the written judgment were never previously provided by the district court to Munafo or orally pronounced at sentencing.

ARGUMENT

I. The district court abused its discretion by considering the perceived need for retribution when imposing a 7-month prison sentence and 24-month term of supervised release for Munafo's violations of supervision.

A. Standard of Review

Sentences imposed for violating terms of supervised release are reviewed under "the same standard as for sentencing generally: whether the sentence imposed is reasonable." *United States v. McNeil*, 415 F.3d 273, 277 (2d Cir. 2005). "Reasonableness" has procedural and substantive components and amounts to abuse of discretion. *United States v. Aldeen*, 792 F.3d 247, 251 (2d Cir. 2015). "This standard incorporates de novo review of questions of law, including our interpretation of the Guidelines, and clear error review of questions of fact." *United States v. Yilmaz*, 910 F.3d 686, 688 (2d Cir. 2018).

Because Munafo did not object, his sentence would ordinarily be reviewed on appeal under the plain error standard. Fed. R. Crim. P. 52(b); *United States v. Quinones*, 511 F.3d 289, 316 (2d Cir. 2007). Plain error review asks whether (1) the district court committed error; (2) the error was plain; and (3) the error affected his substantial rights. If this showing is made, the decision to grant relief lies in this Court's discretion, which will not be exercised unless the error "seriously affect[s] the fairness, integrity or public reputation of judicial proceedings." *United States v. Olano*, 507 U.S. 725, 732 (1993) (citations omitted).

However, this Court has relaxed the full rigors of plain error review in the sentencing context. *See United States v. Sofsky*, 287 F.3d 122, 125-126 (2d Cir. 2002); *United States v. McCrimon*, 788 F.3d 75 (2d Cir. 2015). This Court is more likely to apply a less rigorous standard of review to errors occurring at sentencing because "noticing unobjected to errors that occur at trial precipitates an entire new trial that could have been avoided by timely objection, whereas correcting a sentencing error results in, at most, only a remand for resentencing." *See Sofsky*, 287 F.3d at 125-26 (citing *United States v. Leung*, 40 F.3d 577, 586 n.2 (2d Cir. 1994); *United States v. Baez*, 944 F.2d 88, 90 n.1 (2d Cir. 1991)). *See also United States v. Williams*, 399 F.3d 450, 455-57 (2d Cir. 2005) (comparing the costs and effects of correcting unpreserved trial errors with correcting unpreserved sentencing ones). This Court has also been more willing to relax the strict rigors of review under Rule 52(b) when the challenging party was not afforded advance

notice of the alleged error. *See Sofsky*, 287 F.3d at 125 ("We have entertained on an appeal by the Government an unobjected to sentencing error without any consideration of plain error standards because the Government had no prior notice that the challenged aspect of the sentence would be imposed.") (citing *United States v. Alba*, 933 F.2d 1117, 1120 (2d Cir. 1991)); *United States v. Villafuerte*, 502 F.3d 204, 208 (2d Cir. 2007) (acknowledging the use of a less rigorous analysis of sentencing issues) (citing *United States v. Gilmore*, 471 F.3d 64, 66 (2d Cir. 2006)); *United States v. Simmons*, 343 F.3d 72, 80 (2d Cir. 2003) (same). Because Munafo had no advance warning that the district court would base its revocation sentence on a concern for imposing a just punishment for the violation conduct, this Court should apply the less rigorous standard outlined in *Sofsky*.

B. Discussion

When imposing a sentence following a conviction, Congress requires courts to consider, among other things, the need for the sentence imposed:

> (A) to reflect the seriousness of the offense, to promote respect for the law, and to provide just punishment for the offense;
>
> (B) to afford adequate deterrence to criminal conduct;
>
> (C) to protect the public from further crimes of the defendant; and
>
> (D) to provide the defendant with needed educational or vocational training, medical care, or other correctional treatment in the most effective manner.

18 U.S.C. § 3553(a)(2). "These four considerations – retribution, deterrence, incapacitation, and rehabilitation – are the four purposes of sentencing generally,

and a court must fashion a sentence 'to achieve the[se] purposes . . . to the extent that they are applicable' in a given case." *Tapia v. United States*, 564 U.S. 319, 325 (2011) (quoting 18 U.S.C. § 3551(a)).

When revoking a term of supervised release, Congress directed courts to consider a more limited set of factors. As relevant here, Congress omitted the subsection relating to retribution from the list, 18 U.S.C. § 3553(a)(2)(A). *See* 18 U.S.C. § 3583(2) ("The court may, after considering the factors set forth in section 3553(a)(1), (a)(2)(B), (A)(2)(C), (a)(2)(D), (a)(4), (a)(5), (a)(6), and (a)(7) . . . ."). As the Supreme Court recently clarified, this means that when a court revokes supervision pursuant to 18 U.S.C. § 3583(e)(3), a court may not consider retribution. *Esteras v. United States*, 606 U.S. 185, 204 (2025) ("District courts may revoke a term of supervised release after considering the factors enumerated in § 3583(e). Because § 3553(a)(2)(A) is excluded from that list, district courts may not consider it."). Is so holding, the Supreme Court abrogated this Court's prior decision to the contrary in *United States v. Williams*, 443 F.3d 35 (2d Cir. 2006). *See Esteras*, 606 U.S. at 190 n.1.

This same limitation applies to the length of additional supervision a court imposes following revocation. When a court sentences a defendant to prison following the revocation of supervised release, "the court may include a requirement that the defendant be placed on a term of supervised release after imprisonment." 18 U.S.C. § 3583(h).

The district court violated this limitation. In explaining its selection of a 7-month prison sentence and 24-month term of supervised release, the district court stated that it "believes that the sentence adequately reflects the seriousness of the violation conduct and provides just punishment for that conduct." A 77. Congress did not authorize sentencing courts to consider these retributive purposes when revoking supervised release. A 89. Because none of the Section 3583(e)(3) factors involve "the seriousness of the violation" or the "just punishment for the conduct," this Court should hold that the district court erred in considering these retributive factors when revoking Munafo's supervision and imposing sentence.

II. The case should be remanded because the thirteen standard conditions of supervised release included in the written judgment were not previously disclosed to Munafo or orally pronounced at sentencing.

A. Standard of Review

"'[W]hether the spoken and written terms of a defendant's sentence differ impermissibly' is 'a question of law'" that this Court reviews de novo. *United States v. Maiorana*, 153 F.4th 306, 309 (2d Cir. 2025) (en banc) (quoting *United States v. Washington*, 904 F.3d 204, 207 (2d Cir. 2018)). Likewise, "when the point of law on appeal is a term of the defendant's sentence and the defendant lacked prior notice in the district court that the term would be imposed, [this Court will] review the issue de novo even if the defendant failed to raise an objection in the district court." *Washington*, 904 F.3d at 207, cited in *Maiorana*, 153 F.4th at 310.

B. Discussion

Both the Constitution and the Federal Rules of Criminal Procedure guarantee the defendant a right to be present during sentencing. *United States v. Jacques*, 321 F.3d 255, 262 (2d Cir. 2003); Fed. R. Crim. P. 43(a).[3] Given this right, if a variance exists between the oral pronouncement of a sentence and the written judgment of conviction, the oral sentence controls. *Id.* Any "burdensome punishments or restrictions" appearing in the written judgment that were not pronounced orally must be removed. *United States v. Rosario*, 386 F.3d 166, 168 (2d Cir. 2004).

Until recently, standard conditions of supervised release set forth in U.S.S.G. § 5D1.3(c) could be included in the written judgment even if they were not orally pronounced at sentencing. *See United States v. Truscello*, 168 F.3d 61, 63 (2d Cir. 1999). However, this Court recently reversed course and held that "a sentencing court intending to impose non-mandatory conditions of supervised release, including the 'standard' conditions described in § 5D1.3(c), must notify the defendant during the sentencing proceeding; if the conditions are not pronounced, they may not later be added to the written judgment." *Maiorana*, 153 F.4th at 314.

Here, the district court did not follow this procedure and only told Munafo that he was required to "comply with the standard conditions that have been

[3] Absent an exception, the defendant's presence is required at sentencing. Fed. R. Crim. P. 43(a)(3).

adopted by this Court . . . .” A 77-78. At the time of Munafo’s sentencing, the thirteen standard conditions of supervision included in the written judgment were set forth in the Northern District of New York’s General Order #23, but 18 U.S.C. § 3583 “and the Guidelines prohibit the kind of mandate imposed by General Order #23.” *United States v. McAdam*, 165 F.4th 688, 696-697 (2d Cir. 2026). “General Order #23 purports to override these rules [of § 3583(d)] and require imposition of certain discretionary conditions. That, it cannot do.” *Id.* at 697. *See also United States v. Halls*, 2025 WL 2793376 (2d Cir. Oct. 1, 2025) (summary order) (quoting *Maiorana*, 153 F.4th at 314).

Therefore, this Court should remand the case because the district court failed to orally pronounce the thirteen standard conditions at sentencing. *Id.*

CONCLUSION

Based on the foregoing reasons, this Court should vacate the judgment of the district court and remand for resentencing, or, at the very least, to allow for notice and an opportunity for Munafo to object to the standard conditions of supervise release.

Respectfully submitted,

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March 16, 2026

CERTIFICATE OF COMPLIANCE

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CERTIFICATE OF SERVICE

I certify that on March 16, 2026, I served one copy of the foregoing Brief for Defendant-Appellant Jonathan Munafo on the following counsel of record, by the method stated:

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s/ Renata Hohl	March 16, 2026
Signature	Date